

Sangeeta Menon W/O Sri. Anil Menon vs Anil Menon S/O K.G.K. Menon on 19 January, 2011

Author: B.S.Patil

Bench: B.S.Patil

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
OATEO THIS THE 19"?" DAY OF JANUARY, 20114...V'TT-..:_%'T...,_
BEFORE T

THE HONBLE MR. JUSTICE B,S.PATEE;q.

WRTT PETITION No.1200/2:91o.101i»1é'EC{>A..'

BETWEEN:

Smt. Sangeeta Menon

W/o. Sri Anii Menon _

Aged about 38 years, ' --_ V.

R/at !\io.B--4 207, L & "F7 South 'city

Arekere Micro Layout, V ..

Bangafore -- S60 076.,

V . ~ .,.PETITIONER

(By Sri Beauia, Ag.sv.'} ' '

AND:

Sri Ann Menon 4_ _

S/o. :<.G.K._r~/xenon? _

Aged aboL.I.t\$.Q330'years; 'T

Cfo .' ;'-\z.te(:ss'of't:."->L.td~--. L

11;*1&'1'2/_1,_ ,_

Kora'm_.aTaVga"ia _'1":<fi,r1<::r* Road,

Amerjyot'f:--E_VLayoé,3{* , V

L"TTBa.ngaiaor'e__4-- 560. 07.1';

'son v. 5. ago Adm)

..RESPOf\3{ }ENT

"'%:\$f\$T\$;:_'.i%::'rit petition E3 filed under Articles 226 and 22"? of the

"V».V.'='§oT1S'§:it:u1:ioT*: of India, praying to set aside the oTder dated
' :4-; .1;2,2l;%G9 paged Lmder Section 24 of' the Hindu Marriage Act
V .__V§r': (Annexureaa) and consequentfy direct the regpondent to

pay a sum of Rs.25,00G/«~ to the petitioner towards monthly
maintenance and Rs.15,0G0/~ towards litigation expenses.'s.__

This petition coming on for preliminary hearing

this day, the Court made the foiiowing:-

ORDER

Order dated 14.12.09 passed by i:rieiAddill.irss=emii»,i Bangalore, in M.C.
No.2068/O»7_Yx...,there'b',t__ the ' ' application filed by the petitioner seei<iVn'g. interinrz
n'ia--i.ntenance is called in question in this writ ';'aetitadi».___.ftr":ii 1' A i

2. Petitioner"tisf~theA__Wteii'fe: The resllondent has seeking divorce alleging
C?"U(E':!t:Si""va(':";VtV.,'5.:iV]f]:'v';§l-:41':hills the pendency of the said proceedings',..thei has
filed an appiication under S.2{i ofx'o'the' .:i§i'Vi.ntl't_i"Fiiarriage Act seeking interim
miaiitteinarv-itéfif 'o'f'"Rs.25,000/~ pm. and the litigation expe'nse'so'ft The iearned Judge of the
Famiyy Court rejelctetl application holding that the petitioner ~ .ji_i.f;«ife5".%_}as beee. earning a
sum of Rs.38,461,/«t p.n"i, as a 5i:otistilita.n:t""i'i'3 SYN We india Pvt. Lte; at Bartgaioire, Her ease
t?ér'a.s_ "Vthatj%the salary earned by her was eot sufficient to maintain herself by paying the reritei
for the house and also to hieetpther expenses of herself and their Chile.

3. The Court below has recorded a finding'i.'.tha:ti.V.as wife has been earning almost a sum
of:~i12AS".i~'?'O.,}O&O/3."titfifi.____: t--h'erHe:

was no need for a direction to the resi:S'ond.erit to"maE.ntain""h,is'~_ wife and child
as the amount earned'-i.h'yi..the i}vif_e 'vi.a\$ _isti*fVf'iEii'ent to V maintain herself
and to take .care of't'i'ie"e_:ehiid__ The 'Fian'iVily Court has proceeded to hold that
the Vint'er»'.e:iit'ion'io.f_ _th'e.____Court to order interim maintenance v*»1:ou--.ld
the wife was left with no source of rri'aVi--otain'he"r_seE.f.

4. □ietitioner submits that the petitioner wasvealrliielr ailiiooieetii in a house which was taken on
rent by the --A."hiis:band and now the hueband with ar-htVii'n.d'eretamiinQ-eyvitlhivvllthie land
owner, has deprived the oetit'i'or.i_3er_".efi of staying in the said house, It is the :A".vV:'f'UVl"vfh€f
eiohjltent-ion::E'..~ef the petitioner that how the petitioner is 'jfojgeed-».teT tiekzzii□The rent
payable to the house and hence, it "i..4'7eeeteme 'e.ee}-zesery te seek interim maintenance. Learned
counsel foVr"-th_e_eetioher farther contends that the Court below has . ii ignored the interest of
the chiid in refusing to award anytsum towards maintenance of the chiid.

5. Cotznsf for the respondent strongiyfrefititesitt"thvei "

contentions urged by the petitioner regardsirngé 'her: a maintenance and the aiiegations made""«éat\$o'u't'tv the rentai of the house by the husban'd._em.d his"sobsed'tie"n;t""baC'\$<ing " V out from the same. He further submits. that therespvondent -- husband is wining to maintain""t:3□eiChj_ivd--.and'st\$_ear'-the expenses in that regard.

6. for the parties and on carefui pevrtisait order passed by the teamed Famihfiiiid--ge, or error apparent on the face of the Arecordtétih Vt'he.find'i'-ne;;gé"s.Vrecorded by the Court befow in rejecting iieiquet rnVad"e""tor the interim maintenance by the petii□in eafAJ'_f:o':* V _ 71 "It v\$..s&.E":'□Q;ltiQ dispute that the petitioner is earning a ¥?s, __38,%¥'R6f1/~ by being ernpioyed as a Cnsnutant: in DYN ea. If that Es so, ti: Cannot be said that the p_eti't:i'e'i"i*e% is emitted fer maintenance being withetzt any source of . ' _ ' 1""?

., " /.}i/,, . .

ix?' income to maintain herself. However, as regards the maintenance of the child, ieared Family Judge was not justified in holding that the petitioner had no maintain the child. ..

At: any rate, since the Eearned coLinsei'.for there'spon'rle'nt"-, fairly submits that the respondent a sum of Rs.5,00€)/- p.m. towvards thechiéld as an interim measure, I deem it to direct the respondent to pay}. towards the maintenance of the' case.

The COvlJi't""be.iV.t.):'qfi.ui to'e'X'pedite the disposal of the Case.

The p'etition-«..is' Vavccoii<d'iri~--idly disposed of modifying the invptignedV_i:Lo:rdVe__r', in thve"a«b.o_\1ie terms, '*_bAii.i:'h.e<:on{:e'at:i'ons of the parties are ieft open to be urged Zfw/_atv»the ti'me'=ef disrjosaiviof the main matter. éeire Eedee